Supreme Court Judgement: It pointed out that between 1967-1981, the Governor of Bihar promulgated 256 ordinances and all these were kept in force for periods ranging from 1 to 14 years by re-promulgation from time to time. It held that the exceptional power under Article 213 cannot be used as a substitute for the law-making power of the State Legislature. It ruled that such a practice would be a 'subversion of the democratic process' and a 'fraud on the constitution'. It opined that the ordinance-making power is meant for meeting an extraordinary situation and it cannot be allowed to be 'perverted to serve political ends'. Accordingly, it declared the re-promulgated Bihar Intermediate Education Council Ordinance, 1985 as unconstitutional and invalid.

Impact of the Judgement: This judgement clearly exposed the fact that the ordinance-making power can be misused by the executive government.

M.C. Mehta Case (1986)

Name of the Case	: M.C. Mehta vs. Union of India
Year of Judgement	: 1986
Popular Name	: Oleum Gas Leak case
Related Topic/Issue	: Power of the Supreme Court to award compensation
Related Article/Schedule	: 21 & 32

Supreme Court Judgement: It held that its power under Article 32 is not only injective in ambit, i.e., preventing the infringement of fundamental right but also remedial in scope and providing relief against a breach of the fundamental right already committed. It stated that its power to grant such remedial relief may include the power to award compensation in appropriate cases. It clarified that the infringement of the fundamental right must be gross and patent i.e., incontrovertible and ex facie glaring. It observed that the instant applications for compensation are for the enforcement of the fundamental right to life enshrined in Article 21 and hence, they are maintainable under Article 32.

Impact of the Judgement: This judgement led to the expansion of the ambit of Environmental Law in the country. It introduced the new principle of absolute liability (no-fault liability) in the place of the earlier principle of strict liability.

Kihoto Hollohan Case (1992)

Name of the Case	: Kihoto Hollohan vs. Zachillhu
Year of Judgement	: 1992
Popular Name	: Defection case
Related Topic/Issue	: Validity of anti- defection law
Related Article/Schedule	: 368 & Tenth Schedule